

STATE OF NEW YORK

8472--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 16, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a temporary practice authorization pilot program for certain medical and dental professionals to practice in underserved areas; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 6907 of the education law, as amended by chapter
2 994 of the laws of 1971 and as renumbered by chapter 50 of the laws of
3 1972, subdivision 2 as amended by chapter 315 of the laws of 1981,
4 subdivision 4 as amended by chapter 62 of the laws of 1989 and subdivi-
5 sion 5 as amended by chapter 110 of the laws of 1972, is amended to read
6 as follows:

7 § 6907. Limited permits. 1. Graduate nurses. (a) A permit to practice
8 as a registered professional nurse or a permit to practice as a licensed
9 practical nurse may be issued by the department upon the filing of an
10 application for a license as a registered professional nurse or as a
11 licensed practical nurse and submission of such other information as the
12 department may require to (i) graduates of schools of nursing registered
13 by the department, (ii) graduates of schools of nursing approved in
14 another state, province, or country or (iii) applicants for a license in
15 practical nursing whose preparation is determined by the department to
16 be the equivalent of that required in this state.

17 ~~2-~~ (b) Such limited permit shall expire one year from the date of
18 issuance or upon notice to the applicant by the department that the
19 application for license has been denied, or ten days after notification
20 to the applicant of failure on the professional licensing examination,
21 whichever shall first occur. Notwithstanding the foregoing provisions
22 of this ~~subdivision~~ paragraph, if the applicant is waiting the result

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD11922-03-5

1 of a licensing examination at the time such limited permit expires, such
2 permit shall continue to be valid until ten days after notification to
3 the applicant of the results of such examination.

4 ~~[3-]~~ (c) A limited permit shall entitle the holder to practice nursing
5 only under the supervision of a nurse currently registered in this state
6 and with the endorsement of the employing agency.

7 ~~[4--Fees-]~~ (d) The fee for each limited permit shall be thirty-five
8 dollars.

9 ~~[5-]~~ (e) Graduates of schools of nursing registered by the department
10 may be employed to practice nursing under supervision of a professional
11 nurse currently registered in this state and with the endorsement of the
12 employing agency for ninety days immediately following graduation from a
13 program in nursing and pending receipt of a limited permit for which an
14 application has been filed as provided in this section.

15 2. Temporary practice authorization pilot program. (a) There is hereby
16 established a temporary practice authorization pilot program for the
17 purpose of allowing the temporary practice of registered professional
18 nurses, licensed practical nurses, and nurse practitioners in a county
19 or facility designated by the federal government as medically under-
20 served.

21 (b) Registered professional nurse or licensed practical nurse. (i) A
22 person who is currently licensed and in good standing in another state
23 or territory of the United States to practice as a registered profes-
24 sional nurse or a licensed practical nurse may be temporarily authorized
25 to practice such licensed profession pursuant to this article pending a
26 determination on licensure for which an application has been filed
27 pursuant to this article, provided: (1) such applicant has obtained the
28 endorsement of an employing health care facility that is authorized to
29 provide professional nursing services; (2) the position is located with-
30 in a county or facility designated by the federal government as
31 medically underserved; and (3) the applicant is not employed by an
32 employment agency as defined in subdivision two of section one hundred
33 seventy-one of the general business law.

34 (ii) Prior to commencing practice, the applicant and an authorized
35 representative of the employing facility shall jointly provide written
36 notice to the department, in a form and format acceptable to the depart-
37 ment that the applicant intends to practice in a county or facility
38 designated by the federal government as medically underserved and the
39 applicant shall pay a fee determined by the department. Such temporary
40 authorization shall be awarded immediately upon providing such notice
41 and paying such fee and shall expire in one hundred eighty days, or ten
42 days after notification that the applicant does not meet the qualifica-
43 tions for licensure as a registered professional nurse or licensed prac-
44 tical nurse, whichever shall occur first.

45 (c) Nurse Practitioner. (i) A person who is currently licensed and in
46 good standing in another state or territory of the United States to
47 practice as a nurse practitioner may be temporarily authorized to prac-
48 tice as a nurse practitioner pursuant to this article in collaboration
49 with a New York state licensed physician in accordance with subdivision
50 three of section sixty-nine hundred two of this article pending a deter-
51 mination on licensure for which an application has been filed pursuant
52 to this article, provided: (1) such applicant has obtained the endorse-
53 ment of an employing health care facility that is authorized to provide
54 nurse practitioner services; (2) the position is located within a county
55 or facility designated by the federal government as medically under-
56 served; and (3) the applicant is not employed by an employment agency as

1 defined in subdivision two of section one hundred seventy-one of the
2 general business law.

3 (ii) Prior to commencing practice, the applicant and supervising
4 physician of the employing facility shall jointly provide written
5 notification to the department, in a form and format acceptable to the
6 department, that such applicant intends to practice in a county or
7 facility designated by the federal government as medically underserved
8 and the applicant shall pay a fee determined by the department. Such
9 temporary authorization shall be awarded immediately upon providing such
10 notice and paying such fee and shall expire in one hundred eighty days,
11 or ten days after notification that the applicant does not meet the
12 qualifications for licensure as a nurse practitioner, whichever shall
13 occur first.

14 § 2. Section 6958 of the education law, as added by chapter 327 of the
15 laws of 1992, is amended to read as follows:

16 § 6958. Limited permit. 1. Limited permit to practice midwifery. (a)
17 A limited permit to practice midwifery may be granted for a period not
18 to exceed twelve months to an individual who has to the satisfaction of
19 the department met all the requirements of section sixty-nine hundred
20 fifty-five of this article, but has not yet passed the examination
21 required by subdivision three of such section.

22 ~~[2-]~~ (b) A limited permit shall entitle the holder to practice midwif-
23 ery only under the direct supervision of a licensed physician who is
24 authorized under section sixty-nine hundred fifty-one of this article or
25 a licensed midwife.

26 2. Temporary practice authorization pilot program. (a) There is hereby
27 established a temporary practice authorization pilot program for the
28 purpose of allowing the temporary practice of midwifery in a county or
29 facility designated by the federal government as medically underserved.

30 (b) A person who is currently licensed and in good standing in another
31 state or territory of the United States to practice midwifery may be
32 temporarily authorized to practice midwifery as part of a collaborative
33 relationship in accordance with section sixty-nine hundred fifty-one of
34 this article with a New York state licensed physician pending a determi-
35 nation on licensure for which an application has been filed pursuant to
36 this article, provided: (i) such applicant has obtained the endorsement
37 of an employing health care facility that is authorized to provide
38 midwifery services; (ii) the position is located within a county or
39 facility designated by the federal government as medically underserved;
40 (iii) such applicant has received a degree in midwifery from a duly
41 accredited graduate school located in the United States or Canada; and
42 (iv) the applicant is not employed by an employment agency as defined in
43 subdivision two of section one hundred seventy-one of the general busi-
44 ness law.

45 (c) Prior to commencing practice, the applicant and supervising physi-
46 cian shall jointly provide written notification to the department, in a
47 form and format acceptable to the department, that such applicant
48 intends to practice in a county or facility designated by the federal
49 government as medically underserved and the applicant shall pay a fee
50 determined by the department. Such temporary authorization shall be
51 awarded immediately upon providing such notice and paying such fee and
52 shall expire in one hundred eighty days or ten days after notification
53 that the applicant does not meet the qualifications for licensure as a
54 nurse-midwife, whichever shall occur first.

55 § 3. Section 6525 of the education law, as added by chapter 987 of the
56 laws of 1971, paragraph 1 of subdivision 1 as amended by chapter 133 of

the laws of 1982 and subdivision 4 as amended by chapter 62 of the laws of 1989, is amended to read as follows:

§ 6525. Limited permits. 1. Physicians. Permits limited as to eligibility, practice and duration, shall be issued by the department to eligible applicants, as follows:

~~[1-]~~ (a) Eligibility~~[+]~~. The following persons shall be eligible for a limited permit:

~~[(1+)]~~ (i) A person who fulfills all requirements for a license as a physician except those relating to the examination and citizenship or permanent residence in the United States;

~~[(2+)]~~ (ii) A foreign physician who holds a standard certificate from the educational council for foreign medical graduates or who has passed an examination satisfactory to the state board for medicine and in accordance with the commissioner's regulations; or

~~[(3+)]~~ (iii) A foreign physician or a foreign intern who is in this country on a non-immigration visa for the continuation of medical study, pursuant to the exchange student program of the United States department of state.

~~[2-]~~ (b) Limit of practice. A permittee shall be authorized to practice medicine only under the supervision of a licensed physician and only in a public, voluntary, or proprietary hospital.

~~[3-]~~ (c) Duration. A limited permit shall be valid for two years. It may be renewed biennially at the discretion of the department.

~~[4-]~~ (d) Fees. The fee for each limited permit and for each renewal shall be ~~[one hundred five dollars]~~ as determined by the department.

2. Temporary practice authorization pilot program. (a) There is hereby established a temporary practice authorization pilot program for the purpose of allowing the temporary practice of medicine in a county or facility designated by the federal government as medically underserved.

(b) A person who is currently licensed and in good standing in another state or territory of the United States to practice medicine may be temporarily authorized to practice medicine pursuant to this chapter under the supervision of a New York state licensed physician, pending a determination on licensure for which an application has been filed pursuant to section sixty-five hundred twenty-four of this article, provided: (i) such applicant has obtained the endorsement of an employing health care facility that is authorized by New York state law to provide medical services; (ii) the position is located within a county or facility designated by the federal government as medically underserved; (iii) the applicant has graduated from a duly accredited school of medicine located in the United States or Canada; (iv) such applicant is currently board certified by a physician certification board acceptable to the department; and (v) the applicant is not employed by an employment agency as defined in subdivision two of section one hundred seventy-one of the general business law.

(c) Prior to commencing practice, the applicant and supervising physician shall jointly provide written notification to the department, in a form and format acceptable to the department, that such applicant intends to practice in a county or facility designated by the federal government as medically underserved and the applicant shall pay a fee determined by the department. Such temporary authorization shall be awarded immediately upon providing such notice and paying such fee and shall expire in one hundred eighty days or ten days after notification that the applicant does not meet the qualifications for licensure as a physician, whichever shall occur first.

(d) Any person practicing as a physician in New York state pursuant to this subdivision shall be subject to the personal and subject matter jurisdiction and disciplinary and regulatory authority of the board of regents and the state board for professional medical conduct established pursuant to section two hundred thirty of the public health law as if they were a licensee and as if the authorization pursuant to this subdivision were a license. Such physician shall comply with applicable provisions of this title, the public health law, the rules of the board of regents, the state board for professional medical conduct established pursuant to section two hundred thirty of the public health law, and the regulations of the commissioner and the commissioner of health, relating to professional misconduct, disciplinary proceedings and penalties for professional misconduct. Failure to adhere to the notification provisions of this subdivision may be considered unauthorized practice pursuant to section sixty-five hundred twelve of this title.

§ 4. Section 6546 of the education law, as amended by chapter 48 of the laws of 2012, is amended to read as follows:

§ 6546. Limited permits. 1. Physician assistants. Permits limited as to eligibility, practice and duration, shall be issued by the department to eligible applicants, as follows:

~~[1-]~~ (a) Eligibility. A person who fulfills all requirements to be licensed as a physician assistant except that relating to the examination shall be eligible for a limited permit.

~~[2-]~~ (b) Limit of practice. A permittee shall be authorized to practice as a physician assistant only under the direct supervision of a physician.

~~[3-]~~ (c) Duration. A limited permit shall expire one year from the date of issuance or upon notice to the permittee by the department that the application for a license has been denied. A limited permit shall be extended upon application for one additional year, provided that the permittee's request for such extension is endorsed by a physician who either has supervised or will supervise the permittee, except that such extension may be denied by the department for cause which shall be stated in writing. If the permittee is awaiting the results of a licensing examination at the time such limited permit expires, such permit shall continue to be valid until ten days after notification to the permittee of the result of such examination.

~~[4-]~~ (d) Fees. The fee for each limited permit shall be ~~[one hundred five dollars]~~ as determined by the department.

2. Temporary practice authorization pilot program. There is hereby established a temporary practice authorization pilot program for the purpose of allowing the temporary practice as a physician assistant in a county or facility designated by the federal government as medically underserved.

(a) A person who is currently licensed and in good standing in another state or territory of the United States to practice as a physician assistant may be temporarily authorized to practice as a physician assistant under the supervision of a New York state licensed physician, pending a determination on licensure for which an application has been filed pursuant to section sixty-five hundred forty-one of this article, provided: (i) such applicant has obtained the endorsement of an employing health care facility that is authorized to provide medical services; (ii) the position is located within a county or facility designated by the federal government as medically underserved; (iii) the applicant has received a degree in physician assistant studies from a duly accredited graduate school located in the United States or Canada; and (iv) the

applicant is not employed by an employment agency as defined in subdivision two of section one hundred seventy-one of the general business law.

(b) Prior to commencing practice, the applicant and supervising physician shall jointly provide written notification to the department, in a form and format acceptable to the department, that such applicant intends to practice as a physician assistant in a county or facility designated by the federal government as medically underserved and the applicant shall pay a fee determined by the department. Such temporary authorization shall be awarded immediately upon providing such notice and paying such fee and shall expire in one hundred eighty days or ten days after notification that the applicant does not meet the qualifications for licensure as a physician assistant, whichever shall occur first.

§ 5. Section 6605 of the education law, as amended by chapter 40 of the laws of 1982, subdivision 4 as amended by chapter 57 of the laws of 1999 and subdivision 5 as added by chapter 436 of the laws of 2009, is amended to read as follows:

§ 6605. Limited permits. 1. Graduate dentists. (a) On recommendation of the board, the department may issue a limited permit to a graduate of a dental college who meets the educational qualifications for admission to the licensing examination in dentistry for employment in a hospital or dental facility approved by an appropriate agency, while under the direction or supervision of a licensed dentist. No such permit shall be issued or renewed unless such graduate has a bona fide offer of a position in such a hospital or dental facility.

~~[2-]~~ (b) On recommendation of the board, the department may issue a limited permit for instructing in dentistry to a dentist not licensed under this article to be employed by a registered school of dentistry or dental hygiene to instruct and supervise clinical dentistry or dental hygiene for students in such a registered school in the state, and in so doing to practice dentistry as defined in this article, but only on the premises of such registered school or such other premises as may be used for instruction in the program of education conducted by such institution. No person shall be permitted or authorized to instruct and supervise clinical dentistry for students unless such person is licensed in this state or holds the foregoing limited permit for instructing in dentistry.

~~[3-]~~ (c) The holder of a limited permit under this ~~[section]~~ subdivision may practice dentistry, as defined in this article, but only in the performance of duties required by the position for which the limited permit is issued. Nothing in this ~~[section]~~ subdivision shall be construed to authorize such unlicensed dentist to engage in the private practice of dentistry.

~~[4-]~~ (d) A limited permit under this ~~[section]~~ subdivision shall be valid for one year or until ten days after notification of denial of an application for license. A limited permit may be renewed for one year, except if the applicant is serving in a residency program in a hospital or school of dentistry in this state. A limited permit may be renewed annually for the duration of such residency program. The fee for each limited permit and for each renewal shall be one hundred five dollars.

~~[5-]~~ (e) Notwithstanding ~~[subdivision one]~~ paragraph (a) of this ~~[section]~~ subdivision, dental school graduates who meet the license requirement for education pursuant to subdivision two of section sixty-six hundred four of this article shall be deemed to be exempt persons pursuant to section sixty-six hundred ten of this article and shall not be required to obtain a limited permit, provided that they are employed

1 in an approved residency program for the purpose of fulfilling initial
2 licensure requirements pursuant to section sixty-six hundred four of
3 this article. Not later than sixty days after entry into an approved
4 residency program, the dental resident shall register on a form accepta-
5 ble to the commissioner and pay to the department a residency registra-
6 tion fee established by the department, which residency registration fee
7 shall be reasonable and shall not exceed the limited permit fee speci-
8 fied in ~~[subdivision four]~~ paragraph (d) of this ~~[section]~~ subdivision.
9 All persons deemed exempt pursuant to this ~~[section]~~ subdivision shall
10 be subject to all provisions of article one hundred thirty of this
11 title, including but not limited to having disciplinary action taken
12 against their residency registration status.

13 2. Temporary practice authorization pilot program. (a) Notwithstanding
14 any other provision of this section, there is hereby established a
15 temporary practice authorization pilot program for the purpose of allow-
16 ing the temporary practice of dentistry in a county or facility desig-
17 inated by the federal government as underserved in the discipline of
18 dental health.

19 (b) A person who is currently licensed and in good standing in another
20 state or territory of the United States to practice dentistry may be
21 temporarily authorized to practice dentistry pursuant to this subdivi-
22 sion under the supervision of a New York state licensed dentist, pending
23 a determination on licensure for which an application has been filed
24 pursuant to section sixty-six hundred four of this article, provided:
25 (i) such applicant has obtained the endorsement of a hospital or dental
26 facility that is authorized by New York state law to provide dental
27 services; (ii) the position is located within a county or facility
28 designated by the federal government as underserved in the discipline of
29 dental health; (iii) the applicant has graduated from a duly accredited
30 school of dentistry located in the United States or Canada; and (iv) the
31 applicant is not employed by an employment agency as defined in subdivi-
32 sion two of section one hundred seventy-one of the general business law.

33 (c) Prior to commencing practice, the applicant and supervising
34 dentist shall jointly provide written notification to the department, in
35 a form and format acceptable to the department, that such applicant
36 intends to practice as a dentist in a county or facility designated by
37 the federal government as underserved in the discipline of dental health
38 and the applicant shall pay a fee determined by the department. Such
39 temporary authorization shall be awarded immediately upon providing such
40 notice and paying such fee and shall expire in one hundred eighty days
41 or ten days after notification that the applicant does not meet the
42 qualifications for licensure as a dentist, whichever shall occur first.

43 § 6. Not later than June thirtieth of the year following the effective
44 date of this act, and annually thereafter, the commissioner shall
45 provide the governor, the temporary president of the senate, the minori-
46 ty leader of the senate, the speaker of the assembly, the minority lead-
47 er of the assembly, the chair of the senate standing committee on higher
48 education, and the chair of the assembly committee on higher education
49 with a written evaluation of the pilot program established by this act.
50 Such evaluation shall, at a minimum, address the overall effectiveness
51 of the pilot program at increasing the health care workforce in identi-
52 fied shortage areas and whether continuation or expansion of the pilot
53 program established by this act is recommended. The written evaluation
54 shall be made publicly available on the office's website.

55 § 7. This act shall take effect immediately and shall expire and be
56 deemed repealed 3 years after such date.